

## TIKTOK DATA PRESERVATION REQUEST |

*to utilize when being digitally harassed & cyber stalked; and to buy time & get data preserved when you don't YET have enough evidence of who/what is behind it*

Under the federal Stored Communications Act, **18 U.S.C. §2703(f)**, an electronic-communications provider must preserve records/evidence in its possession **upon the request of a governmental entity** while the government pursues a court order or other legal process. The initial preservation period is **90 days**, renewable for another 90 days **mental entity** while the government pursues a court order or other legal process. The initial preservation period is **90 days**, renewable for another 90 days

A **preservation request** can be useful for anyone experiencing cyber harassment, cyberstalking, threats, impersonation, repeated anonymous contact, or other potentially criminal online conduct when **the identity behind an account is unknown or important electronic evidence could disappear before an investigation is completed**. Instead of immediately requiring the platform to turn records over, law enforcement can ask a service such as TikTok to **preserve specified existing account records and evidence while investigators pursue whatever subpoena, warrant, court order, or other legal process would be required to actually obtain them**. Federal law provides for preservation for 90 days, renewable for another 90 days, and TikTok has a formal law-enforcement procedure implementing preservation requests. This can be particularly valuable with anonymous or pseudonymous accounts because potentially relevant records—such as account information, login/IP information, interaction records, comments, or other available data—can be protected from routine deletion while the legal and investigative questions are worked out. A preservation request **doesn't establish that a crime occurred, identify the perpetrator, or automatically give police access to the records**; its purpose is essentially to prevent potentially important electronic evidence from disappearing while those questions are investigated.